

Terms of Use

Updated September 1, 2025

NIL Hispanic, Inc. (hereafter, NILH may be referred to as “us”, “we”, or “our”) welcomes you to our website and the services available on and through the website (the “**Site**” and the “**Services**”). Your use of the Site and the Services are governed by these Terms of Use, and the Privacy Policy, inclusive of the Community Guidelines, which are both located on the Site (the “**Terms**”). Any time you browse the Site or use the Services in any way, you agree to be bound by the Terms. If you don’t agree to the Terms, do not use the Site or the Services, or sign up for any subscription products.

The purpose of the Site is to assist individuals who wish to promote their name, image and or likeness and popularity on social media and in the general public (“**End Users**”). End Users may be referred to herein individually as “**Party**”.

We reserve the right to modify the Terms at any time, with such changes becoming effective when we post the modified Terms to the Site. We also reserve the right to make any changes to the Site and Services in any manner and to deny or terminate your access to the Site and Services, even if you have an Account, in our sole discretion.

Each time you use the Site or the Services, the then-current version of the Terms will apply. If you use the Site or the Services after a modification of these Terms, you agree to be bound by the Terms as modified.

These Terms contain important information regarding your rights with respect to the Site and the Services, including your relationship with us. Please read them carefully and review them regularly.

1. Eligibility.

If you are under 13 years old, you may not use the Services. Parties under the age of majority in the jurisdiction in which you reside must be signed up and managed by their parent, legal guardian, or authorized Agent. When you use the Services, you represent that you are (i) at least the age of majority in the jurisdiction where you reside or (ii) if you have not reached the age of majority in the jurisdiction where you reside, that you have received permission to use the Services from your parent or legal guardian. You also represent that your use of the Services does not violate any applicable law or regulation.

2. Registration & Account.

Certain Services or portions of the Site may require you to register for an account (“**Account**”). By registering for an Account, you grant us a worldwide, royalty-free, non-

exclusive, sub-licensable, unconditional, perpetual and transferable license to display your name and likeness in a form clearly indicating your status as a platform or program participant, in all forms of media and through any media channels (now known or hereafter developed), including but not limited to television, radio, print, Internet site, and other electronic communications. Notwithstanding anything to the contrary in this Section, upon the termination or cancellation of your Account, our right to display your name and likeness will automatically terminate.

By creating an Account on the Site, you are representing and warranting that all information you submit is current, truthful, complete, and accurate, and that you agree to maintain the accuracy of such information. You authorize us to verify any information through any source including but not limited to the use of third-party identity verification systems. You understand and agree that we will use the information you provide in accordance with the terms of the Privacy Policy, which is expressly incorporated into this Agreement. You agree not to create an Account using a false identity, providing false information, or if you have previously been removed or banned from the Site.

As part of the Account creation process, you may be asked to provide an email address or phone number, and a password unique to the Account ("**Login Information**"). You are responsible for maintaining the confidentiality of your Login Information and agree not to transfer or disclose your Login Information to any third-party other than an individual with express authority to act on your behalf. If you suspect any unauthorized use of your Account, you agree to notify us immediately. You acknowledge and agree that you are solely responsible for any activities occurring under your Account. You acknowledge and agree that NILH is not responsible or liable for any damages, losses, costs, expenses, or liabilities related to any unauthorized access to or use of your Account. If you provide your Login Information to an agent or other individual who may act on your behalf, NILH cannot remove that access from the individual; it is up to you to modify your Account by changing your password or other options to remove that individual's access to your Account.

You acknowledge further that NILH is not a legal representative and does not offer any legal advice, nor guarantee any advice or guidance that may be provided, and it is your responsibility as an Account holder to assure that you understand and adhere to all rules, regulations, and laws which may apply to you. These may be inclusive of but not limited to regulations or policies of your organization, your institution, your conference, your state, and any Governing Bodies which may provide oversight of your activities.

Notwithstanding anything to the contrary herein, you acknowledge and agree that you shall have no ownership or other property interest in the Account, and you further acknowledge and agree that all rights in and to the Account are and shall forever be owned by and inure

to NILH's benefit. We do not recognize the transfer of Accounts. You may not purchase, sell, gift, or trade any Account, or offer to purchase, sell, gift, or trade any Account, and any such attempt shall be null and void.

You have the right to cancel your Account at any time. You understand and agree that, except as expressly provided by law, the cancellation of your Account is your sole right and remedy with respect to any dispute you may have with us.

NILH RESERVES THE RIGHT TO TERMINATE ANY ACCOUNT AT ANY TIME FOR FAILURE TO ADHERE TO THESE TERMS OF USE OR FOR ANY OTHER REASON, WITH NO LIABILITY TO YOU UNDER ANY THEORY OF LAW, INCLUDING TORT OR CONTRACT, FOR ANY TYPE OF DAMAGES INCLUDING BUT NOT LIMITED TO LOST PROFITS. You acknowledge and agree that we are not required to provide you with notice before terminating or suspending your Account, and/or your access to the Platform. In the event that your Account is terminated, suspended, or cancelled, you will have no further access to your Account, or anything associated with it (including Accounts on the system for which you may have been previously responsible).

3. Permitted Uses/License.

You are authorized to access the Site for the sole purpose of viewing and using the Services on your computer or device.

You may not decompile, disassemble, rent, lease, loan, sell, sublicense, or create derivative works from the Site or the Services. You may not use any robot, spider, or other automatic device or manual process to monitor or copy the Site or its content without our prior written permission. Your failure to abide by these conditions will immediately terminate your right to access the Site or to use the Services and may violate our intellectual property rights or the intellectual property rights of third parties.

Parties agree that they are responsible for, and agree to abide by, all laws, rules, and regulations applicable to their use of the Site.

While NILH does take certain measures to assist End Users in avoiding potentially fraudulent or other illegal activity of which we become aware, we assume no liability or obligation to take any such measures or actions. When we provide warnings or messages to users about any such activity, we do not warrant that such messages are accurate or that such messages will reach any or all users they should have reached in a timely manner or at all or that such messages or measures will prevent any harm or otherwise have any impact. If an End User receives an illicit message, harassment, or believes there to be any fraud, request for illegal activity, or any use the End User does not believe is a valid request

on the Site, that End User should make an immediate report to contact@nilhispanic.com and cease contact with the offending individual.

4. **Third-Party Sites.**

The Site may contain links to websites we do not operate, control, or maintain (***“Third-Party Websites”***). We do not endorse any Third-Party Websites, and we make no representation or warranty in any respect regarding the Third-Party Websites. Any links to Third-Party Websites on the Site are provided solely for your convenience. If you do access any Third-Party Websites, you do so at your own risk and waive any and all claims against us regarding the Third-Party Websites or our links thereto.

The Site may contain features and functionalities that link to or provide you with access to third-party content that is completely independent of NILH, including content, data, postings, or other intellectual property shared by an End User or on and End User’s behalf (***“End User Content”***). End User Content may include websites, platforms, directories, servers, networks, systems, information, databases, applications, software, programs, products or services, and the Internet in general. The contents of End User Content and other offerings that allow interactions with third parties, including between Parties, on the NILH Platform are the sole responsibility of the people involved in those interactions. NILH is not responsible for the content of the interactions you may have with third parties through End User Content or other offerings. You should make whatever investigation you feel necessary or appropriate before proceeding with any contact or interaction, in connection with our Site or otherwise. You agree that NILH may, in its sole discretion, intercede in any dispute and you will reasonably cooperate with NILH if it does so. You acknowledge and agree that we are not responsible or liable for any damages, losses, costs, expenses, or liabilities of any kind or nature incurred as the result of any such interaction. You hereby release NILH from claims, demands, and damages (actual and consequential) of every kind or nature, known and unknown, suspected and unsuspected, disclosed and undisclosed, arising out of or in any way related to such disputes or our Site. IF YOU ARE A CALIFORNIA RESIDENT, YOU HEREBY WAIVE CALIFORNIA CIVIL CODE SECTION 1542 (AND ANY OTHER SIMILAR APPLICABLE STATE STATUTE), WHICH PROVIDES: “A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY”.

5. Content.

The Site or the Services may include interactive areas in which content and information may be posted (referred to as **“Party Content”** regardless of form). The Party who posts such Party Content is solely responsible for all Party Content. We may, in addition to any other rights and remedies we may have against you at law or in equity, immediately, with or without notice to you, cease the distribution, display or other exploitation of any content which we believe violates these Terms, without any liability to you of any kind. We reserve the right to remove or modify any Party Content for any reason in our sole discretion.

When you post Party Content, you give us and our affiliates a nonexclusive, royalty-free, perpetual, irrevocable, transferable, and fully sub-licensable right to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, perform, and display such Party Content throughout the world in any media. To the extent such content is attached to a user profile on the Services, the foregoing license includes a right to reproduce your profile, and any name, likeness or photograph contained in such profile. If you submit feedback or suggestions about our Services, we may use your feedback or suggestions without obligation to you. *Notwithstanding the foregoing, if an End User is a student-athlete subject to the rules and regulations of the National Collegiate Athletic Association, we will not use any such User Content in a manner that would violate, or cause such a user to violate, such rules and regulations.*

When you post Party Content, you represent and warrant to us that (1) you own the Party Content, (2) the posting of the Party Content does not violate any rights of any person or entity, (3) you have no agreement with or obligations to any third-party with respect to the rights granted herein and you have not and will not sell, assign, transfer, or convey any of the rights granted herein in a manner adverse to or in derogation of the rights granted to us, and (4) to the extent any “moral rights” or similar right exist in the Party Content and are not exclusively owned by us, you agree not to enforce any such rights as to us or our affiliates. You agree to pay all royalties, fees, and any other monies owing to any person or entity by reason of any Party Content posted by you to or through the Services.

6. Party Conduct.

You agree not to use the Site or the Services to take any action or actions that (including with respect to any Party Content): (1) are patently offensive in any manner, (2) are contrary to our public image, goodwill, or reputation, (3) infringe on our or any third-party’s intellectual property rights, or (4) “frame” or “mirror” any part of the Site without our prior written consent. You acknowledge and agree that you are solely responsible for compliance with any applicable law or regulation relating to advertisement, social media

marketing, or endorsement, including but not limited to acknowledgement of any compensation received in return for your posting of the Content such as with the #ad hashtag. We can remove any content, access to future content, or information you share on the Platform if we believe that it violates these Terms of Use, our policies, or we are permitted or required to do so by law.

7. Copyright Infringement.

We respect the intellectual property rights of others. The Digital Millennium Copyright Act of 1998 (the “**DMCA**”) provides a complaint procedure for copyright owners who believe that website material infringes their rights under U.S. copyright law. If you believe that your work has been improperly copied and posted on the website, please provide us with the following information: (1) name, address, telephone number, email address, and an electronic or physical signature of the copyright owner or of the person authorized to act on his/ her behalf; (2) a description of the copyrighted work that you claim has been infringed; (3) a description of where on the Site the material that you claim is infringing is located; (4) a written statement that you have a good faith belief that the disputed use is not authorized by the copyright owner, its agent, or the law; and (5) a statement by you, made under penalty of perjury, that the above information in your notice is accurate and that you are the copyright owner or authorized to act on the copyright owner’s behalf. These requirements must be followed to give NILH legally sufficient notice of infringement. Send copyright infringement complaints to our General Counsel, at the following email address: contact@nilhispanic.com. We suggest that you consult your legal advisor before filing a DMCA notice with NILH’s copyright agent. There can be penalties for false claims under the DMCA.

8. Disclaimer.

You agree that the Services are available on an “as is” basis, without any warranty, and that you use the Services at your own risk. We disclaim, to the maximum extent permitted by law, any and all warranties, whether express or implied, including, without limitation, (a) warranties of merchantability or fitness for a particular purpose, (b) warranties against infringement of any third-party intellectual property or proprietary rights, (c) warranties relating to delays, interruptions, errors, or omissions in the Services or on the Site, (d) warranties relating to the accuracy or correctness of data on the Services, and (e) any other warranties otherwise relating to our performance, nonperformance, or other acts or omissions.

We do not warrant that the Site or the Services will operate error-free or that the Site is free of computer viruses and/or other harmful materials. If your use of the Site or the

Services results in the need for servicing or replacing equipment or data, we are not responsible for any such costs.

Some jurisdictions do not allow the exclusion or limitation of certain categories of damages or implied warranties; therefore, the above limitations may not apply to you. In such jurisdictions, our liability is limited to the greatest extent permitted by law.

9. Limitation of Liability.

You acknowledge and agree that your use of the Site is at your own risk and that the Site is provided on an “as is” and “as available” basis. To the extent permitted by applicable law, NILH disclaims all warranties, conditions, and representations of any kind, whether express, implied, statutory, or otherwise, including those related to merchantability, fitness for a particular purpose, non-infringement, and arising out of course of dealing or usage of trade.

NILH makes no representations or warranties about the accuracy or completeness of content available on or through our Site or the content of any social media platform or third-party website linked to or integrated with our Site. You acknowledge and agree that NILH will have no liability for any: (i) errors, mistakes, or inaccuracies of content; (ii) personal injury, property damage, or other harm resulting from your access to or use of the Site; (iii) any unauthorized access to or use of our servers, any personal information, or user data; (iv) any interruption of transmission to or from our Site; (v) any bugs, viruses, trojan horses, or the like that may be transmitted on or through our Site; or (vi) any damages, losses, costs, expenses, or liabilities of any kind incurred as a result of any content posted or shared through our Site.

You acknowledge and agree that any material or information downloaded or otherwise obtained through our Site, including any End User Content, is done at your own risk and that you will be solely responsible for any damages, losses, costs, expenses, or liabilities arising from or in connection with doing so. No advice or information, whether oral or written, obtained by you from us or through our Site, including through End User Content, will create any warranty not expressly made by us.

You acknowledge and agree that when using our Site, you will be exposed to content from a variety of sources, and that NILH is not responsible for the accuracy, usefulness, safety, legality, or intellectual property rights of or relating to any such content. You further understand and acknowledge that you may be exposed to content that is inaccurate, offensive, indecent, objectionable, or harassing, and you agree to waive, and hereby do waive, any legal or equitable rights or remedies you have or may have against NILH with respect thereto.

To the fullest extent permitted by applicable law, you acknowledge and agree that in no event will NILH be liable to you or to any third-party for any indirect, special, incidental, punitive, or consequential damages (including for loss of profits, revenue, or data) or for the cost of obtaining substitute products, arising out of or in connection with these Terms, however caused, whether such liability arises from any claim based upon contract, warranty, tort (including negligence), strict liability, or otherwise, and whether or not NILH has been advised of the possibility of such damages.

Any liability we have to you in connection with these Terms, under any cause of action or theory, is strictly limited to \$100. Without limiting the previous sentence, in no event shall we or any of our affiliates be liable to you for any indirect, special, incidental, consequential, punitive, or exemplary damages arising out of or in connection with these Terms. The foregoing limitations apply whether the alleged liability is based on contract, tort, negligence, strict liability, or any other basis, even if we or our affiliates have been advised of the possibility of such damages.

You agree to indemnify and hold us harmless for any breach of security or any compromise of your Account.

Some jurisdictions do not allow the exclusion or limitation of incidental or consequential damages; therefore, the above limitations may not apply to you. In such jurisdictions, our liability is limited to the greatest extent permitted by law.

10. Indemnification.

You agree to indemnify and hold harmless us, our affiliates and our and their officers, directors, partners, agents, and employees from and against any loss, liability, claim, or demand, including reasonable attorneys' fees (collectively, **"Claims"**), made by any third-party due to or arising out of your use of the Site and Services in violation of these Terms, any breach of the representations and warranties you make in these Terms, or your Party Content. You agree to be solely responsible for defending any Claims against or suffered by us, subject to our right to participate with counsel of our own choosing.

11. Electronic Signatures and Notices.

Certain activities on the Services may require you to make an electronic signature. You understand and accept that an electronic signature has the same legal rights and obligations as a physical signature.

If you have an Account, you agree that we may provide you any and all required notices electronically through your Account or other electronic means. You agree that we are not

responsible for any delivery fees charged to you as a result of your receipt of our electronic notices.

12. Dispute Resolution.

California law governs these Terms. You agree that any disputes or claims under these Terms will be litigated exclusively in the state and federal courts located in Santa Clara County, California. You agree that any claim arising under these Terms will be litigated on an individual basis and will not be consolidated with any claim of any other party.

13. NCAA, Conference, Institutional and other Regulations.

We are in no way sponsored by the NCAA, any conference, or any institution. As a user of this Site, you are responsible for your own activities in connection with your use of the Site and the Service, and you are responsible for knowing and complying with any rules, regulations, and laws of any governing body to which you are obligated (including, but not limited to, your institution, state and/or federal government) ("**Regulations**"). You understand and agree that any Deal in which you take part of, may need to be reported. By accepting any Deal Terms, you are acknowledging and agreeing that you will report all activities to all entities as required by Regulations. If you act in violation of the Regulations, we may take reasonable steps in response, including, but not limited to, terminating your access to and use of the Site and/or the Service and/or reporting such conduct to the NCAA, your conference or institution, or other appropriate authorities or entities. We do not knowingly promote any violations of Regulations.

14. Miscellaneous.

We may assign, transfer, delegate, or otherwise hypothecate our rights under these Terms in our sole discretion. If we fail to enforce a provision of these Terms, you agree that such a failure does not constitute a waiver to enforce the provision (or any other provision hereunder). If any provision of these Terms is held or made invalid, the invalidity does not affect the remainder of these Terms. We reserve all rights not expressly granted in these Terms and disclaim all implied licenses. You acknowledge and agree we may change or discontinue any aspect of our Site at any time, without notice to you.

15. Managing Your Account

End User Account. Your account and the safety and security thereof are your responsibility. You create Login Information and should not share this with anyone. If you give a third-party permission to access your account, that individual will have access to all information in your profile. NILH does not monitor your account and cannot stop, and shall not be responsible for, any fraud that may occur. If you suspect any unauthorized use of

your Account, you agree to notify us immediately. You acknowledge and agree that you are solely responsible for any activities occurring under your Account. You acknowledge and agree that NILH is not responsible or liable for any damages, losses, costs, expenses, or liabilities related to any unauthorized access to or use of your Account. If you provide your Login Information to an agent or other individual who may act on your behalf, NILH cannot remove that access from the individual, it is up to you to modify your Account by changing your password or other options to remove that individual's access to your Account.

Community Guidelines

The following Community Guidelines are here to help facilitate a community-wide understanding of expectations and standards of conduct while using NILH. By using NILH, you agree to these guidelines and our **Terms of Service**. Violating these guidelines may result in loss of access to NILH.

- NILH's Community Guidelines are divided into the four following sections: Respect, Community, Safety, and Reliability.

Act with integrity and treat others with respect. **All** Users should:

- Not lie, misrepresent something or someone, or pretend to be someone else.
- Be polite and respectful when you interact with others.
- Not discriminate against or harass others.

All Users should note and understand that NILH connects communities. **All** Users should:

- Not use this Platform to engage in conduct that is against the law or may cause another to break the law should they engage in such conduct.
- Not use this Platform for purposes of competing with NILH or to promote other products or services.
- Do not take any action that could damage or adversely affect the performance or proper functioning of the Platform.

Help keep the platform safe. Only use the Platform as authorized by these Guidelines, the Terms of Use or another agreement with us:

- Do not use this Platform to post content or materials that are pornographic, threatening, harassing, abusive, or defamatory, or that contain nudity or graphic violence, incite violence, violate intellectual property rights, or violate the law or the legal rights (for example, privacy rights) of others.

- Do not use this Platform to post “spam” or other unauthorized commercial communications
- Do not solicit another User’s username and password for the Platform or any other sensitive personal information.
- Only use NILH to communicate. Do not request or give a personal phone number, email address or physical address.
- If someone on the Platform makes you feel unsafe, or makes a request of you that you believe is illegal, or violates these, or any Terms of Use, please reach out to NILH at contact@nilhispanic.com immediately outlining the issue.

Be reliable:

- If you provide us with someone else’s personal information, you: (i) must do so in compliance with applicable law, (ii) must be authorized to do so, and (iii) authorize us to process that information under our Terms of Use.
- Do not use the name, logo, branding, or trademarks of NILH or others without permission.
- Do not use or register any domain name, social media handle, trade name, trademark, branding, logo, or other source identifier that may be confused with NILH branding.
- Read and follow our Terms of Use and Privacy Policy in addition to these Guidelines.

Privacy Policy

Updated September 1, 2025

NIL Hispanic, Inc. (hereafter, NILH may be referred to as “we” or “us”) values our customers and users and respects their privacy. This Privacy Policy governs the collection and use of data in connection with our website (the “**Site**”), our applications, and any services we offer (collectively, the “**Services**”). This Privacy Policy sets forth the nature, purpose, use and sharing of any information that identifies or can be used to identify the various users of the Services. Use of Services confirms consent to this Privacy Policy and the collection and processing of Personal Information in accordance with these terms.

What Information is Collected

NILH provides technology to the athlete endorsement industry by serving the full life cycle of supporting, educating, assessing, planning, sharing, creating, measuring, tracking, disclosing, regulating, listing, browsing, booking, and more. Additionally, we connect athletes (“**End Users**”) with those who wish to secure social media posts, shoutouts, video or audio commercials, live appearances, and other requests, in order to endorse or advocate for their products or events (“**Customers**”). We often work with the agents and other representatives, such as parents or legal guardians, of End Users, (“**Agents**”), and collectively with End Users and Customers, our “**Users**”). In order to perform our obligations to Users, we must collect a fair amount of information, including name, address, phone number, date of birth, brand information such as company name and business category, email address, and other information requested as part of using the Site or the Services (“**Personal Information**”). Personal Information is used in accordance with the Terms of Service and this Privacy Policy. Personal Information shall specifically **exclude** any educational or student records as defined within “FERPA” including but not limited to grades, transcripts, class lists, course schedules, student financial information and student discipline files which we will not collect at any time for any purpose. However, we may collect any or all of the following publicly available information: your name, school, sport, position, jersey number, and class year (“**Directory Information**”). Additionally, certain information which may identify an individual such as a User’s IP address and Session ID is automatically collected solely to help prevent fraud and abuse of our Services as well as to provide a consistent and relevant experience for Users (this information together with Directory Information may be referred to as “**Non-Personal Information**”). In addition, we collect technical information including device, browser type, operating system, CPU speed, referring or exit webpages, and click patterns. We also collect general data about what pages visitors access, the number of visits, average time spent on the Site and other similar factors. This information can, under certain

circumstances, identify a particular user. However, we do not use this information for anything beyond user experience improvements.

How Information is Collected

Personal Information may be collected from Users at the time of account creation, or as provided by the User or an associate of the User for purposes of inviting that User to the Platform. If provided by an associate of the User, we only retain that information until such time as the User's account is created or the invitation is declined. We may also collect Non-Personal information through various sources including publicly available directories (i.e., athletics websites or institution directories) and social media platforms or when a third party is utilized as further described herein.

End Users

In addition to the information collected about an End User when they sign up for our Services (or their Agent signs up on their behalf), we monitor the social media behavior of End Users in order to analyze the performance of their social posts to determine the potential effectiveness of sharing content with the End User for Customers. We collect information about the social media presence of the End User, including their particular identifiers (usernames, handles, etc.) and information about their reach and engagement with their followers ("**Audience**"). As part of the Services, End Users may choose to connect their social media accounts and provide various permissions to us via the social media platform's app authorization pages.

Customers

In addition to the information collected when a Customer signs up for Services, information may be collected that, while not Personal Information, may be confidential, including, but not necessarily limited to, marketing goals and other internal business or organizational information. Such information is kept confidential in accordance with our Terms of Use, applicable law, and this Policy.

How Information is Used

Except as otherwise noted in this Privacy Policy, Personal Information, and Non-Personal Information of Users may be collected for internal purposes only. A User's Personal Information may be utilized to provide the Services, or for legitimate business interests to the extent those interests shall not outweigh any User's privacy rights. For example, Personal Information may be used to:

- Verify your identity and eligibility to use the Platform as an End User or a Customer.
- Conduct routine business operations in furtherance of legitimate business interests such as identification, authentication, contact purposes and general research. As part of routine business operations, Personal Information may be transferred to certain third parties with whom we contract for the limited purpose of providing services such as web hosting and email. These service providers are contractually required to protect User information within the highest acceptable business industry standards and to abide by all Privacy Policies in the protection of that information including but not limited to those terms as outlined here.
- Employ internal marketing techniques such as tracking customer preferences to provide a customized Site experience, updating an End Users' profile to make it stand out and more attractive to potential marketers, and communicating with Users about Services, special offers, and other services. If an End User wishes to not have their profile updated, or has any questions about updates, please contact us at contact@nilhispanic.com.
- Disclose to an End User's institution, deals completed or offered to an End User as required by institution policy, conference policy, NCAA policy or state legislation. An institution may use this information to ask pertinent questions regarding the requirements of the End User and/or the product that is being pitched.
- Help prevent fraud and help protect the security of User accounts.
- Generate reports based on aggregated and anonymized generic product, location, and other contributed information, which we may use internally, or which we may sell to others.
- As necessary to exercise or defend our rights to comply with applicable law or orders from law enforcement and other governmental authorities.
- Assist affiliates or business partners with their internal uses or to facilitate their assisting us in providing service to you or notifying you of products, services, or offers that may be of interest to you.
- Third parties may use your personal information for their own marketing purposes. This may include the delivery of interest-based advertising.
- Administer a contest, promotion, survey or other feature of the Site or the Services to enhance User experience.

In the event NILH sells substantially all of its assets, or is acquired, Personal Information will likely be one of the assets transferred to the new owner, who will be entitled to use the information in accordance with this Privacy Policy.

Directory Information will be displayed to allow End Users and Customers to browse potential opportunities. An End User may decide what, if any Directory Information will be displayed by including or removing the information from their profile.

Messages From NILH

On occasion, NILH will need to contact Users. Primarily, these messages are delivered by email, SMS Messages, social media Direct Messaging, or by push notifications for a variety of reasons, including service updates, marketing, and potential transactions. Users can opt out of receiving any **marketing-specific** communications via email or Messages in account settings or by sending an email to contact@nilhispanic.com. **Every User is required to keep a valid email address and/or SMS Messaging phone number on file to receive Service-specific messages.** If a User chooses SMS Messages and opts out of receipt of messages at any point, Service updates will be sent via the email address on file instead.

Messages from NILH are service-related and necessary for Users. You understand and agree that NILH can send you non-marketing emails, Messages, or SMS messages, such as those related to transactions, your account, security, or product changes. Examples of service-related messages include an email address confirmation/welcome email when you register your account, notification of a Deal offer, additional service availability, modification of key features or functions, and correspondence with NILH's Support team (including by chat interface or the other methods of communication as described above).

When you register for an account, you receive notice of and agree to receive marketing emails and messages from us. You can unsubscribe at any time from marketing emails or messages through the opt-out link included in marketing emails or messages. Please note that some changes to your account settings may take a few days to take effect.

Third Parties

NILH may use third-party service providers to help operate our website, provide our services, and improve your experience. These providers may collect and process information about you for specific purposes, including:

Analytics and Performance – Tools that help us understand website traffic, usage patterns, and improve functionality.

Payment Processing – Services that handle payment transactions securely.

Marketing and Communication – Platforms used to send emails, newsletters, or other communications.

Hosting and Infrastructure – Providers that store and manage website data and content.

These third-party services may collect, store, and use information in accordance with their own privacy policies. We encourage you to review their privacy policies to understand how your data may be handled. By using our website, you consent to the sharing of your information with these third-party providers for the purposes described above.

External Links

Our website may contain links to external websites that are not operated or controlled by us. We are not responsible for the privacy practices or content of these external sites.

We encourage you to review the privacy policies of any external websites you visit, as they may collect personal information independently of our website.

Social Information

In order to provide the Services, the Social Information of End Users may be shared with Customers and Agents. Social Information for the purposes herein may include but not be limited to, an End Users' handles on various social media sites, the activity and engagement of an End User on each site and other, publicly available information and statistics that may allow a Customer to more accurately build a campaign. Such use may include analyzing and sharing Social Information in order to examine the performance of their social posts to determine the potential effectiveness of sharing content of the End User for Customers. The information used is restricted to that made readily available by the End User when they voluntarily post to social media, and the monitoring of Social Information is done only in our legitimate business interest without infringing on any privacy interests of the End User.

Collecting information about the social media presence of the End User requires that a certain amount of information about the individuals who follow and engage with the End User on various platforms (the “**Audience**”) may be collected. We use this information to provide Customers with statistics on the performance of a particular campaign. The information collected is fully aggregated and does not identify the individual Audience members.

Cookie Policy

In order to improve Services and provide more convenient, relevant experiences to Users, we and our agents may use “cookies,” “web beacons,” and/or similar devices to track User activities. A cookie is a small amount of data that is transferred to the browser by a web server and can only be read by the server that deposited it. It functions as an identification card and enables the saving of passwords and preferences. It cannot be executed as code or deliver viruses. A web beacon is a small transparent .gif image that is embedded in an HTML page or email used to track when the page or email has been viewed. Most browsers are initially set to accept cookies, and most services that include similar devices are typically initially activated to collect data. Browsers can be set to notify Users when they receive a cookie, giving Users the chance to decide whether to accept it. We do not support browsers’ Do Not Track features. Users can enable or disable Do Not Track by visiting the preferences or settings page of the User’s browser, keeping in mind that disabling these

Storage and Protection of Personal Information

NILH collects and uses Personal Information only for the purposes for which it was collected and in accordance with this Policy. We review our data collection, storage, and processing practices to ensure that we only collect, store, and process the Personal Information needed to provide or improve our services. We take reasonable steps to ensure that the Personal Information we process is accurate, complete, and current, but we depend on Users to update or correct their Personal Information whenever necessary.

We store the Personal Information collected only as long as it is necessary to comply with any contractual, legal, and/or ethical obligations. We will delete the Personal Information of any User upon their reasonable request.

We take appropriate security measures to protect against unauthorized access to or unauthorized alteration, disclosure or destruction of all data and information collected by us. These include secure servers and processing equipment, internal reviews of data collection, storage, and processing practices, and introducing security measures, including but not limited to, physical security measures, to guard against unauthorized access to systems where we store personal data.

Access to Personal Information is restricted to NILH employees, service providers and agents who need to know that information in order to operate, develop or improve Services. All individuals with such access to Personal Information are bound by confidentiality obligations and may be subject to discipline, including termination and criminal prosecution, if they fail to meet these obligations. However, no method of transmission of information, or method of electronic storage, is 100% secure. Therefore, while we strive to

protect all Personal Information, we cannot guarantee its absolute security. IN NO EVENT WILL NILH OR ITS SUBSIDIARIES, AFFILIATES OR ANY PARTY INVOLVED IN CREATING, PRODUCING OR DELIVERING SERVICES BE LIABLE IN ANY MANNER WHATSOEVER FOR ANY INCIDENTAL, CONSEQUENTIAL, INDIRECT, SPECIAL OR PUNITIVE DAMAGES ARISING OUT OF UNAUTHORIZED ACCESS TO THE PERSONAL INFORMATION COLLECTED BY NILH IN THE PROVISION OF THE SERVICES.

Rights of the User

We are fully committed to respecting the rights and wishes of Users as they pertain to any information collected, including by complying with relevant data privacy laws and regulations as detailed below. We constantly weigh business needs and the legitimate privacy interests of Users and do not engage in business activities in which Users' interests outweigh ours. If Users have any questions or concerns about the use of Personal Information or Non-Personal Information, Users are encouraged to contact us at contact@nilhispanic.com.

Users are responsible for updating us on any name, e-mail or postal address, telephone number or other Personal Information changes by contacting us at contact@nilhispanic.com. Similarly, Users may decline to receive newsletters or other marketing materials from NILH by unsubscribing from any items or submitting a request directly to contact@nilhispanic.com.

For California Residents

Your California Privacy Rights

- **Right to Know**– You have the right to ask us to tell you what personal information of yours we collect, use, share or sell.
- **Right to Access** – You have the right to request access to the personal information of yours we collect or maintain.
- **Right to Request Deletion**– You have the right to ask us to delete the personal information we collect or maintain about you.
- **No Discrimination** – You have the right not to be discriminated against for exercising the rights above.

You also have Shine the Light Rights – California's "Shine the Light" law, Civil Code section 1798.83, requires certain businesses to respond to requests from California customers asking about the business' practices related to disclosing personal information to third parties for the third parties' direct marketing purposes. Alternately, businesses may

have in place a policy not to disclose personal information of customers to third parties for the third parties' direct marketing purposes if the customer has exercised an option to opt out of such information sharing. We have such a policy in place. California residents can exercise these rights by contacting us at: contact@nilhispanic.com

We will need to verify that you are who you say you are before we delete or share personal information with you. After you submit your request, you will be sent a confirmation email and need to click on the link provided. If you make a request via email, we may need to request more information from you in order to verify your request.

For International NILH Users:

For Canadian Residents

We collect, use, and disclose a User's Personal Information with the User's consent, which may be express or implied. Users may withdraw consent to the use and disclosure of Personal Information by us or by third parties for marketing purposes at any time by contacting us at contact@nilhispanic.com or at the address listed below. If you would like to access, update, or request that we delete your preferences or the Personal Information that we have collected about you, please contact us, and we will respond to your request within 30 days.

For Citizens of the EU

As a citizen of the European Union, you are entitled to the full spectrum of the rights under the General Data Protection Regulation ("GDPR") that entered into effect on May 25, 2018, and all data privacy regulations that preceded it to the extent that they were not preempted by the GDPR. We will go out of our way to accommodate any valid request within a reasonable amount of time, and in all cases in the statutorily required amount of time. As required by the GDPR, we require that all processors and subprocessors of the data we collect fully comply with the obligations of the GDPR and do not infringe on your privacy rights in any way. In particular, you have the following rights:

Right to Access

You have the right to see any Personal Information we have collected about you as well as the purpose for that collection and processing of it and whether we plan to share such Personal Information with anyone.

Right to Correct

You have the right to correct any inaccurate Personal Information in our possession. Taking into account the purposes of the processing, you have the right to have incomplete

personal data completed by providing a supplementary statement to NILH at contact@nilhispanic.com.

Right to Erase

You have the right to have your Personal Information erased from our data stores without undue delay. Additionally, we will erase Personal Information without undue delay if:

- the Personal Information is no longer necessary in relation to the purposes for which it was collected;
- the User withdraws consent and there is no other legitimate basis for the processing;
- the User objects to the processing and there are no overriding legitimate grounds for the processing; the Personal Information has been unlawfully processed;
- the Personal Information must be erased for compliance with a legal obligation.

Right to Restrict

You have the right to restrict processing of your Personal Information.

Right to Port Data

You have the right to request your Personal Information be ported over to another controller. However, because we do not store much Personal Information, we likely will not have the technical means to port the information automatically. If this is the case, we will recommend simply deleting the Personal Information instead. If you really want it transferred to another party, we will email data fields directly to the new controller and let you know via email when it is complete.

Right to Object

You have the right to object to the collection or processing of Personal Information at any time if you believe data was collected or processed unlawfully. Our team will work with you directly to investigate the claim and take appropriate action. While the claims are under investigation, your data will be deleted from our stores. If you would like, you may re-submit your data for access to NILH content at any time.

Online Privacy Policy Only

This online privacy policy applies only to information collected through the Site and Services and not to information collected offline. This Privacy Policy operates in

conjunction with our Terms of Use, which detail restrictions on the use of the Services as well as our warranties and limited liabilities related to the use of the Services.

Updates and Effective Date

From time to time, we may update this privacy statement. We will notify you about material changes by either sending an email message to the email address you most recently provided to us or by prominently posting a notice on our site. We encourage you to periodically check back and review this statement so that you always will know what information we collect, how we use it, and with whom we share it.

The Privacy Statement posted on this site was updated September 1, 2025.

Changes to our Privacy Policy

We are free to update this Privacy Policy at any time, without notice. However, we will notify Users with a reasonable amount of time in advance if there are major modifications made to this Policy. The continued use of the Services indicates consent to the terms of this Policy.

Governing Law

The terms of this Privacy Policy are governed by and in accordance with the laws of the state of California. Users should not provide us with any Personal Information unless they consent to the application of United States law and, where applicable, California law, and to the use and disclosure of information in accordance with the terms of this Privacy Policy.

How to Contact Us/Opt Out of Marketing Communications

Continued use of this Platform indicates acknowledgement and consent to this Privacy Policy and the terms herein. If you have any questions or concerns about the online privacy statement for this site or its implementation, or if you would like to opt out from our sharing of your Personal Information with unaffiliated third parties for the third parties' direct marketing purposes you may contact us at contact@nilhispanic.com and request that we opt you out of such sharing. We may ask you to provide additional information for identity verification purposes, or to verify that you are in possession of an applicable email account.

If you prefer not to receive marketing information from this site, follow the "unsubscribe" instructions provided on any marketing e-mail you receive from this site. If you have signed up to receive text messages from us and no longer wish to receive such messages, you may

follow the instructions to stop delivery of such messages, which may include by replying “STOP” to the received text message. Please note that in order to provide you services, or required notices on updates to the platform, you may still receive service messages from us, even if you opt out, unless you terminate your account.

If there are any questions regarding this Privacy Policy, you may contact us using the information below:

contact@nilhispanic.com